THE BOARD OF COUNTY COMMISSIONERS RESOLUTION NO. 05-136

MEADOW POINTE DEVELOPMENT ORDER AMENDMENT
DEVELOPMENT OF REGIONAL IMPACT
SUBSTANTIAL DEVIATION DETERMINATION

RESOLUTION AMENDING RESOLUTION NO. 90-32, AS AMENDED, TO APPROVE REVISIONS TO THE DEVELOPMENT ORDER FOR THE MEADOW POINTE (F.K.A. TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT AND DETERMINING THAT THE PROPOSED CHANGE DOES NOT CONSTITUTE A SUBSTANTIAL DEVIATION TO THE APPROVED DEVELOPMENT ORDER.

WHEREAS, on October 9, 1973, the Pasco County Board of County Commissioners adopted by resolution a Development of Regional Impact/Development Order (DRI/DO) approving, with conditions, the Deerfield Village DRI; and,

WHEREAS, the DO was amended by the Board of County Commissioners by Resolution No. 89-10 dated October 11, 1988; Resolution No. 89-29 dated November 15, 1988; Resolution No. 89-69 dated January 4, 1989, rescinding Resolution Nos. 89-10 and 89-29; Resolution No. 90-32, a Substantial Deviation DO approved on November 21, 1989; Resolution No. 92-50 dated November 12, 1991; Resolution No. 97-98 dated December 10, 1996; and Resolution 98-91 dated February 10, 1998; and,

WHEREAS, September 27, 2004, Trout Creek Properties, LLC, filed a Notice of Proposed Change (NOPC) to an approved DO, pursuant to Section 380.06(19)(e)1, Florida Statutes (F.S.) (NOPC).

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners in regular session duly assembled this 8th day of March, 2005, that:

1. FINDINGS OF FACT

a. The developer has submitted the NOPC simultaneously to the Pasco County Growth Management Department, the Tampa Bay Regional Planning Council, and the Florida Department of Community Affairs (FDCA).

b. The Board of County Commissioners is the local governing body having jurisdiction over the review and approval of the said DRI in accordance with Section 380.06, F.S.

c. The Board of County Commissioners considered the NOPC on March 8, 2005.

d. All parties were afforded the opportunity to present evidence and argument on all issues and submit rebuttal evidence.

e. Additionally, at the said public hearing, any member of the general public requesting to do so was given the opportunity to present written or oral communications.

f. The Board of County Commissioners has received and considered the evidence submitted by the applicant, the recommendations of the Pasco County Growth Management Department, and the comments of the Tampa Bay Regional Planning Council and FDCA staffs.

2. CONCLUSIONS OF LAW

a. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendment approved hereby does not constitute a substantial deviation; therefore, it does not require further DRI review pursuant to Subsection 380.06(19), F.S.

b. The Meadow Pointe DRI, as amended hereby, will not unreasonably interfere with the achievement of the objectives of the State Land Development Plan.

c. The amendment approved by this resolution is in accordance with the requirements of Section 380.06, F.S., and is consistent with the Pasco County Comprehensive Plan adopted pursuant to Section 163, F.S.

d. The impacts of the proposed development are adequately addressed by the conditions of this DO, as amended, pursuant to Section 380.06, F.S.

e. The proposed development is not in an Area of Critical State Concern as designated pursuant to Section 380.05, F.S.

f. These proceedings have been duly conducted pursuant to applicable law and regulations.

g. Phase I of the development remains vested pursuant to Subsection 163.3167(8), F.S., and Phase II also remains vested subject to the requirements of Section C.3 of the DO (Transportation) as amended by Resolution No. 97-98.

h. Having made the above findings of fact and conclusions of law, the Meadow Pointe DO is hereby amended.

3. ORDERED

a. Table 1 of Section C.1 of the DO is hereby amended to change the build-out date for Phase 2 from December 31, 2003, to November 30, 2008, an extension of four (4) years and eleven (11) months. Any delay in the build-out date of the project beyond November 30, 2008, shall require a new transportation analysis in accordance with Chapter 380.06, F.S., as the basis for a DO amendment which may include a recalculation of the required transportation mitigation.

b. Except as specifically amended hereby, the provisions of the DO, as amended, remain in full force and effect.

c. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendment approved hereby does not constitute a substantial deviation; therefore, it does not require further DRI review pursuant to Subsection 380.06(19), F.S.

d. The Pasco County Growth Management Department will provide certified copies of this order to the developer, FDCA, Tampa Bay Regional Planning Council, and upon attorneys of record in these proceedings.

e. This order shall be deemed rendered upon transmittal of copies of this order to the recipients stated in Paragraph No. C.4 above.

f. The developer shall record a Notice of Adoption of this order as required pursuant to Chapter 380 and shall furnish the County Attorney with a copy of the recorded notice.

g. This resolution shall take effect immediately upon its adoption.

h. The applicant shall record a Notice of Adoption of this resolution as required pursuant to Chapter 380, F.S.

DONE AND RESOLVED this 8th day of March, 2005.

(SEAL) COUNTY COMMISSIONERS ORGANIZED JUNE 2nd 1887 FLORIDA

ATTEST:

JED PITTMAN, CLERK

BOARD OF COUNTY COMMISSIONERS OF
PASCO COUNTY, FLORIDA

PAT MULIERI, Ed.D., CHAIRMAN

APPROVED
MAR 0 8 2005

APPROVED AS TO LEGAL FORM AND SUFFICIENCY
Office of the Pasco County Attorney

ATTORNEY

NOTICE OF ADOPTION OF AN AMENDMENT TO THE DEVELOPMENT ORDER FOR THE MEADOW POINTE (F.K.A. TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT

Pursuant to Section 380.06(15)(f), Florida Statutes, notice is hereby given that the Pasco County Board of County Commissioners, by Resolution No. 05-136 dated 3-8-05, has adopted an amendment to the development order for a Development of Regional Impact known as Meadow Pointe (Resolution No. 90-32). The above-referenced development order constitutes a land development regulation applicable to the property described in Exhibit A of the development order.

A legal description of the property covered and the development order may be examined upon request at the Office of the Clerk to the Board of County Commissioners of Pasco County, Pasco County Courthouse, Dade City, Florida.

The recording of this Notice shall not constitute a lien, cloud, or encumbrance on the real property described in above-mentioned Exhibit A nor actual nor constructive notice of any of the same under the authority of Section 380.06(15)(f), Florida Statutes.

(SEAL) BOARD OF COUNTY COMMISSIONERS ORGANIZED JUNE 2nd 1887 PASCO COUNTY FLORIDA

ATTEST:

JED PITTMAN, CLERK

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

PAT MULIERI, Ed.D., CHAIRMAN

APPROVED AS TO LEGAL FORM AND SUFFICIENCY
Office of the Pasco County Attorney

ATTORNEY

APPROVED
MAR 0 8 2005

STATE OF FLORIDA
COUNTY OF PASCO
THIS IS TO CERTIFY THAT THE FOREGOING IS A TRUE AND CORRECT COPY OF PAGE(S) ____ OF ____ PAGES OF THE ORIGINAL OF RECORD IN MY OFFICE. WITNESS MY HAND AND THE COUNTY'S OFFICIAL SEAL THIS 3-21-05
JED PITTMAN, CLERK TO THE BOARD
BY Sandra Merlel D.C.

gm/meadpt29/41